

to retain new trial counsel. A trial in this case has not been set.

However, the Court is concerned that Defendant is a corporation. California law does not permit corporate entities to litigate an action in *propria persona*. Defendant will be required to retain counsel in both cases.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

Conclusion

1. Schrinier Law Firm PC's motion to be relieved as Counsel of Record for Defendant is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) lodged on January 14, 2026. The withdrawal shall be effective upon filing of proof of service of this Order and Form MC-040 on Defendant.
3. Prior to the effective date of withdrawal, Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to his former client by mail at the last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill out and file the change of address form with the Court.
4. Withdrawing Counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
5. The Court schedules a Case Management Conference for December 10, 2026 at 8:30 a.m. Withdrawing Counsel shall provide notice to Defendant of this CMC and inform Defendant that they are ordered to appear.
6. The Clerk of the Court shall send written notice of the CMC for December 10, 2026 at 8:30 a.m. to Defendant in *propria persona*.
7. No appearance is required at the hearing on September 9, 2026.

15. 9:00 AM CASE NUMBER: C24-03035
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC
BE RELIEVED AS COUNSEL
FILED BY:
TENTATIVE RULING:
See Line 14.

16. 9:00 AM CASE NUMBER: C25-00727
CASE NAME: PATRICIA WELLER VS. CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
1ST AMENDED COMPLAINT
FILED BY: CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
TENTATIVE RULING:

Defendants California Health and Human Services and Department of Social Services ("Defendants")

bring this demurrer to the First Amended Complaint (“FAC”) of plaintiff Patricia Weller (“Plaintiff”). Defendants challenge the FAC in its entirety and each of the two individual claims against them.

For the reasons discussed below, the Court **OVERRULES** Defendants’ demurrer based on failure to make a timely government claim and **SUSTAINS** the demurrer to the first and second causes of action for failure to state facts sufficient to constitute a cause of action.

Meet and Confer

The meet and confer requirement has been satisfied. (Stephen R. Weinmann Decl., ¶¶ 2-3; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Requests for Judicial Notice

RJN ISO Demurrer

Defendants request that the Court take judicial notice of a declaration of Angelica Ramos, a custodian of records for the Government Claims program at the Department of General Services. (RJN ISO Demurrer, p. 2.) Defendants argue this is proper under Evidence Code section 452, subdivision (c), which allows the court to take judicial notice of the official records of a state agency, as well as records and files of state administrative boards. Defendants cite *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752-1753, for the proposition that the appellate court in “*Fowler* found the trial

court properly took judicial notice of the fact that the records of the State Board of Control did not contain a claim filed by the plaintiff regarding the defendant's allegedly false allegations. The request for judicial notice was granted based on the declaration of a board employee who searched the records and declared no claim had been filed." (RJN ISO Demurrer, p. 2.)

RJN ISO Opposition

Plaintiff requests that the Court take judicial notice of a document from the legislative history of AB 1523, an Assembly Third Reading dated April 1, 2014, which is in regards to the enactment of Health & Safety Code section 1569.605. (RJN ISO Opposition, pp. 1-2.)

RJN Ruling

Defendants' objection to Plaintiff's request for judicial notice is **overruled**. The Court **GRANTS** Defendants' request for judicial notice and Plaintiff's request for judicial notice, as to the existence of the documents but not the truth of the matters asserted therein. (Evid. Code, § 452, subd. (c).) "Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable." (*Herrera v. Deutsche Bank Nat'l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

Background: Facts Alleged in FAC

Plaintiff filed this action on March 13, 2025, and filed the first amended complaint ("FAC") on September 11, 2025. (FAC, p. 1.) Plaintiff alleges claims against Defendants for: (1) breach of statutory duty as to state agencies; and (2) gratuitous undertaking. (FAC, pp. 2-4.)

Plaintiff alleges that she was born on February 16, 1934, and at all times relevant, was a resident of Walnut Creek Willows, a residential care facility for the elderly, doing business at 2015 Mount Diablo Blvd., Walnut Creek, California. (FAC, ¶ 1.) The owner of the Walnut Creek Willows was and is Razel & Ruztin, LLC (Razel & Ruztin). (*Ibid.*) Plaintiff's residence at the care facility began on or around May 4, 2022, and ended on November 15, 2023, when she was severely beaten by a resident at the Walnut Creek Willows. (*Ibid.*) On December 6, 2024, a bankruptcy court discharged plaintiff's claim against Razel & Ruztin at which time the cause of action herein accrued. (*Id.* at ¶ 3.) Plaintiff mailed a claim against these defendants to Department of General Services, 707 Third St., West Sacramento, CA 95605 on December 9, 2024. (*Ibid.*)

Razel & Ruztin did not carry state mandated liability insurance (which requires a \$1,000,000 policy). (FAC, ¶¶ 5, 10.) Despite the Defendants requiring Razel & Ruztin to produce its insurance certificate by June 28, 2023, they did not produce it, yet Defendants did not withhold Razel & Ruztin's license as a residential care facility. Plaintiff claims that this led to Plaintiff being severely beaten by another resident on November 15, 2023, and Razel & Ruztin filing for bankruptcy because they did not have insurance. (*Id.* at ¶¶ 4-12.)

Plaintiff seeks damages according to proof. (FAC, p. 4.)

Discussion

Plaintiff asserts that the State of California is the demurring party and that the State of California is not a defendant, does not have standing to demurrer, and that the defendants have not demurred. The Court finds that the named defendants are being represented by the California Attorney General and there is no merit to this argument.

Failure to File Timely Government Claim

Defendants argue that the Court should sustain the demurrer because Plaintiff has failed to file a timely government claim. (Demurrer, pp. 11-12.) The complaint alleges that the claim was mailed on December 9, 2024, but the injury causing event, the attack by another resident, took place on November 15, 2023, so the claim was mailed more than one year after the incident and the time to present a claim for injury to a person is six months. (*Id.* at p. 11.) Even if the claim accrued at the time Razel & Ruztin's liability was "discharged" on December 6, 2024, as alleged in FAC paragraph 3, there still has been no claim presented as per the declaration of Angelica Ramos, which Defendants have requested the Court to take judicial notice of. (*Id.* at p. 12.)

Plaintiff asserts that the FAC does not allege a claim for personal injury, but rather it alleges a failure to ensure that the care facility had the state required insurance. (Opposition, p. 1.) Plaintiff further argues that receipt of the government claim is not required and the FAC alleges that Plaintiff mailed the government claim on December 9, 2024. (*Id.* at p. 2.)

On reply, Defendants reiterate that the date Plaintiff's claim accrued was the date she was injured by the attack on November 13, 2023. (Reply, p. 3.) Defendants assert that Plaintiff was on constructive notice that if the party responsible was insolvent, that she would need to resort to the mandated insurance and that failure to discover the factual basis for a claim against a public entity does not delay accrual. (*Ibid.*) Defendants contend that even if the Court accepts the contention that the proper time for Plaintiff to have presented the claim is one year and that the claim did not accrue until December 2024, the only authority Plaintiff cites to support the position that receipt is not required is Government Code section 915. (*Id.* at p. 4.) And further, "Plaintiff effectively concedes she has no proof that the government claim was ever mailed, by failing to even put in a declaration by anyone who actually mailed or caused the claim to be mailed to counter the sworn declaration of Angelica Ramos." (*Ibid.*)

Here, the Court finds for the purposes of this pleading challenge that Plaintiff is not alleging a personal injury claim against Defendants, but rather is asserting a claim for breach of statutory duty, which would carry a one-year time to file a government claim. (FAC, ¶¶ 4-12; Gov. Code, § 911.2, subd. (a).) The allegation of mailing is sufficient for pleading purposes. (See *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1237 [147 Cal.Rptr.3d 709].) "The claim, amendment, application, or notice shall be deemed to have been presented and received at the time of the deposit." (Gov. Code, § 915.2, subd. (a).)

Regarding Defendants' argument that the claim accrued on the date of the attack, November 15, 2023 (Demurrer MPA, p. 11; Reply, p. 3), that would be based on injuries attributable to the physical attack, not based on the failure of Defendants to have pulled the license of the residential care home for not having insurance. "Traditionally at common law, a cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation. . . . This is

the 'last element' accrual rule . . .” (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191.) Here, the last element of any claim Plaintiff would have against Defendants based on the failure to pull the license of the Walnut Creek Willows for not having insurance needs harm and the harm from this is not alleged to have occurred until the bankruptcy court discharged Plaintiff’s claim against the owner of Walnut Creek Willows on December 6, 2024. A lawsuit prior to that date would not have been ripe.

Further, the Court cannot determine disputed questions of fact on demurrer, and factual allegations in a complaint are deemed true. Thus, the declaration of Angelica Ramos will not be utilized to disregard the factual allegation in the FAC that Plaintiff mailed a government claim on December 9, 2024. *Fowler* is distinct from the case here because in *Fowler* the plaintiff did not allege in the complaint that he complied with the government claim procedure. (*Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1749 [Defendant “contended that Fowler failed to file a claim under the California Tort Claims Act, prior to bringing the lawsuit. [Citations.] In response, Fowler argued that he was not required to file a claim...”].) Here, Plaintiff has affirmatively pled that they made a government claim and facts pleaded in a complaint are deemed true for the purposes of a demurrer.

Regarding Defendants’ argument that “Plaintiff effectively concedes she has no proof that the government claim was ever mailed, by failing to even put in a declaration by anyone who actually mailed or caused the claim to be mailed to counter the sworn declaration of Angelica Ramos.” (Reply, p. 4.) “[A] hearing on demurrer cannot be turned into a contested evidentiary hearing.” (*Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 365.) Here, Defendants are overreaching far beyond the scope of a demurrer. Plaintiff does not need to submit “proof” to defeat a demurrer, it is based on the allegations of the FAC.

The Court **overrules** Defendant’s demurrer to the FAC based on failure to timely file a government claim.

First Cause of Action for Breach of Statutory Duty as to State Agencies

Defendants argue that Plaintiff’s claim for “breach of statutory duties” fails because it does not identify a specific statute or state facts supporting jurisdiction for a claim against Defendants. (Demurrer, p. 12.) Defendants cite *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, for the quote that “[I]n California all government tort liability is dependent on the existence of an authorizing statute or ‘enactment’ [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation].” (Demurrer, p. 12.) “Health and Safety Code section 1569.605 does not expressly declare either HHSA or CDSS to be liable, nor does it create a specific duty of care owed to Plaintiff.” (*Id.* at p. 13.) Defendant argues that there is no duty, let alone a mandatory duty, for Defendants to suspend a license or notify Plaintiff that Walnut Creek Willows was illegally conducting business without insurance. (*Ibid.*) Defendants argue that even if there were a mandatory duty, there still must be causation, which is lacking here. (*Id.* at pp 13-14.) Defendants finally assert that Plaintiff does not have standing to challenge the granting of a license to operate Walnut Creek Willows as they are not a party to the license. (*Id.* at p. 14.)

Plaintiff in opposition asserts that “*Powell v. Cal.*, 234 Cal. App. 3d 910, 916-917 (1991) stands for the proposition that when the state or its agencies are not required to obtain proof of insurance, a cause

of action cannot be stated. However, when proof of insurance is required, there is a duty.” (Opposition, p. 3.) Plaintiff asserts that such a duty was pled at paragraphs 7 and 8 of the FAC. Plaintiff argues that although Section 1569.605 does not say the state has an obligation to ensure compliance, the state knows why the statute was enacted and the cost it would incur, as the Assembly Third Reading stated that this statute would have minor costs to the DSS in the range of \$32,000 to ensure each facility complies with the insurance requirement. (*Id.* at p. 4.)

Defendants argue in reply that there is no private cause of action to enforce Health & safety Code section 1569.605 and that the legislative history Plaintiff requested judicial notice of does not change this. (Reply p. 5.) The lack of any mention of financial consequences to the State in the event of a licensee’s failure to have insurance is evidence that there was no intention to create a private right of action. (*Ibid.*) Further, the estimated cost of \$32,000 shows that there was no intent to create a private right of action because if there were a private right of action there would be potentially massive costs from such an insurance requirement with a mandatory duty of enforcement. (*Ibid.*)

Here, the case Plaintiff cites, *Powell v. Cal.* (1997) 234 Cal.App.3d 910, shows that Health and Safety Code section 1569.605 does not create a mandatory duty that would require Defendants to rescind the license of Walnut Creek Willows or shut them down for not complying with the requirement to maintain insurance. Plaintiff is correct in the statement that “the proposition that when the state or its agencies are not required to obtain proof of insurance, a cause of action cannot be stated,” but Plaintiff is incorrect to portray Section 1569.605 as requiring the state to obtain proof of insurance.

In *Powell*, the plaintiff, a 19-month-old child, lost three fingers in an accident at a daycare facility that did not have the required insurance. (*Powell, supra*, 234 Cal.App.3d at 912.) The owner was destitute and judgment proof and nonetheless stipulated to entry of judgment against her in the amount of \$350,000. (*Id.* at p. 913.) The plaintiff sued the Department of Social Services (“DSS”) alleging that the DSS failed to monitor and regulate the day care where the injury occurred, which allowed it to continue operating without insurance and resulted in the situation where the plaintiff was unable to recover damages for his injury. (*Ibid.*) The trial court granted summary judgment in favor of the DSS and the court of appeal affirmed. (*Id.* at p. 912.)

The *Powell* court ruled that although the California Child Day Care Facilities Act required daycares to carry insurance in order to be registered, “The act does not require a family day-care home to file with DSS proof of insurance or proof of compliance with the affidavit alternative.” (*Powell, supra*, 234 Cal.App.3d at 914.) *Powell* discussed other cases that came to different results and distinguished them, “in both *Morris* and *Elson* the permittees were required to file with the public entities specified proof of insurance, and the failure to file put the entities on notice that the permittees were out of compliance. There is no such requirement in the statutes before us. . .” (*Id.* at p. 916.)

For example, in *Morris v. County of Marin* (1977) 18 Cal.3d 901, a construction worker sustained injuries while working on a construction site that did not carry the required insurance. (*Id.* at p. 904.) In that case, the statute requiring insurance required the county defendant to “ascertain that each applicant for a building permit carries workers’ compensation insurance.” (*Morris, supra*, 18 Cal.3d at 910.) Labor Code section 3800, which was at issue in *Morris*, required a city or county that issues construction permits to “have on file” a “certificate of workers’ compensation insurance issued by an admitted insurer.” (1991 Lab. Code, § 3800 [reflecting 1968 version, as no textual changes in 1988 update].)

Here, the Health and Safety Code at issue, section 1569.605, does not require Defendants to actively police the insurance requirement and did not require Walnut Creek Willows “to file with the public entities specified proof of insurance. . .” (*Powell, supra*, 234 Cal.App.3d at 916.) The statute provides that:

On and after July 1, 2015, all residential care facilities for the elderly, except those facilities that are an integral part of a continuing care retirement community, shall maintain liability insurance covering injury to residents and guests in the amount of at least one million dollars (\$1,000,000) per occurrence and three million dollars (\$3,000,000) in the total annual aggregate, caused by the negligent acts or omissions to act of, or neglect by, the licensee or its employees.

(Health & Saf. Code, §1569.605.)

Without an authorizing statute, Plaintiff may not assert this claim against Defendants. (Gov. Code, § 815, subd. (a) [“Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.”].)

Plaintiff’s request for judicial notice to the legislative history does not change this result. “Only when the language of a statute is susceptible to more than one reasonable construction is it appropriate to turn to extrinsic aids, including the legislative history of the measure, to ascertain its meaning. (*Diamond Multimedia Systems, Inc. v. Superior Court* (1999) 19 Cal.4th 1036, 1055.) Here, the statute is clear, and the legislative history is not needed to ascertain the meaning of the code.

The Court in *Powell* addressed the situation here as such:

The government undertakes licensing and inspection activities to insure public health and safety. The Legislature has apparently concluded that it is better public policy to leave an injured person to his remedy against the person actually causing the injury than it is to impose an additional liability on the government for negligently failing to prevent the injury, presumably because imposition of such liability would expose public entities to virtually unlimited risks and certain bankruptcy. Although in this instance Holt’s insolvency makes Bijan’s remedy against her ineffective, ‘[f]ar more persons would suffer if government did not perform [its inspection] functions at all than would be benefited by permitting recovery in those cases where the government is shown to have performed inadequately.’

(*Powell v. Cal.* (1991) 234 Cal.App.3d 910, 917.)

The Court **sustains** Defendants’ demurrer to the first cause of action for breach of statutory duty.

Second Cause of Action for Gratuitous Undertaking

Defendants argue that this claim fails because it sounds in negligence and there is no liability for public entities for negligence in the absence of a special relationship between the plaintiff and the public entity. (Demurrer, pp. 14-15.)

Plaintiff argues that Defendants did not establish that a public entity's omission to do something it voluntarily agreed to cannot support a gratuitous undertaking theory and that requiring the facility to provide confirmation of insurance coverage within seven days of the annual site inspection created a duty to ensure proof was given. (Opposition, p. 4.)

On reply, Defendants argue that this claim is unsupported by any legal authority and that it sounds in negligence but is unsupported by any statute. (Reply, p. 6.) Defendants argue that Plaintiff has not shown how Defendants agreed to voluntarily undertake to ensure that licensees have insurance.

In *Morgan v. County of Yuba* (1964) 230 Cal.App.2d 938, the court addressed a claim of gratuitous undertaking against a county based on allegations that a sheriff informed a woman that he would notify her if a person they arrested got out on bail—the sheriff did not do this and the woman was murdered. (*Id.* at p. 941.) In an action by the woman's children, the court held that "We have shown above that reliance upon the promise is a necessary element of the cause of action and in the case at bench reliance has not been pleaded. It is not alleged that the promise made created an expectation of fulfillment; nor is it alleged that but for such reliance and expectation, plaintiffs could and would have taken appropriate measures themselves against Ashby's threatened assault." (*Id.* at p. 945.)

Here, Plaintiff similarly has alleged no promise of Defendants to Plaintiff relating to the insurance requirement and has not shown any special relationship between Plaintiff and Defendants. The transaction between Walnut Creek Willows and Defendants cannot be construed to be a promise by Defendants to Plaintiff.

The Court **sustains** the demurrer to the second cause of action for gratuitous undertaking.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendants' demurrer based on failure to make a timely government claim and **SUSTAINS** the demurrer to the first and second causes of action for failure to state facts sufficient to constitute a cause of action. Plaintiff may file and serve a second amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

17. 9:00 AM CASE NUMBER: C25-02567
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC,
BE RELIEVED AS COUNSEL FOR PLTF
FILED BY:
TENTATIVE RULING:
See Line 14.